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File No.: EXP202300500

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 13, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of Article 5.1.c) of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that he is a neighbor of a house adjacent to the house of the respondent and that the respondent has installed a video surveillance camera at the entrance to his house, which, due to its location and orientation, is capable of capturing images of the entrance to his house, without having authorization for this.

He provides images of the location of the camera and a burofax sent by the complainant to the respondent, urging the removal of the camera.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party; the forwarding was reiterated on February 9, 2023, by certified postal mail, and was again returned as "absent."

THIRD: On March 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On July 6, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

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FIFTH: The aforementioned initiation agreement was notified on August 1, 2023, by publication in the Edict Board of the Official State Gazette, in accordance with the rules established in the LPACAP, after an attempt to notify by postal mail was made and returned by the Postal Service on July 27, 2023, as undeliverable due to non-collection at the office, after two notification attempts and absence during delivery, leaving a notice in the mailbox. After the deadline for submitting allegations had passed, it was confirmed that no allegations had been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with

the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

SOLE: The complainant states that he is a neighbor of a house adjacent to the house of the respondent and that the respondent has installed a video surveillance camera at the entrance to his house, which, due to its location and orientation, is capable of capturing images of the entrance to his house, without having authorization for this.

He provides images of the location of the camera and a burofax sent by the complainant to the respondent, urging the removal of the camera.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Infringement

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras with the aim of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is strictly

necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out on them. In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

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The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to guarantee the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. And, in such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras cannot obtain images of third-party private spaces and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area. Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without justified cause is not permitted.

Images in spaces owned by third parties cannot be captured or recorded without the consent of their owners, or, where applicable, of the persons present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system with the aim of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

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2.- The images obtained may not be used for any ulterior purpose incompatible with the reason that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in those cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, assess them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects camera processing for security purposes, provided there is a risk to the rights and freedoms of natural persons, it must be reported to the AEPD within a maximum of 72 hours.

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A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in the case of conducting low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows the data controller to assess their situation regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Administrative Infraction

In accordance with the proven facts established during the sanctioning procedure, it is considered that the aforementioned facts violate the provisions of Article 5.1.c) of the GDPR, which constitutes an infraction classified in Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the

higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

For the purposes of the statute of limitations for infractions, the infraction indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

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a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Sanction

Article 58.2 of the GDPR states:

"Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each particular case."

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

With respect to the infringement of Article 5.1.c) of the GDPR, considering the proven facts, it is deemed that the sanction to be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and

j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;

e) any previous infringements committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures referred to in Article 58, paragraph 2, have been previously ordered against the

controller or processor in relation to the same matter, the compliance with those measures;
j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party could have included the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 5.1 c) of the GDPR, allows for the imposition of a fine of €300 (three hundred euros).

VII

Measures

Article 58.2 d) of the GDPR indicates that each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time...”. In this case, the reported party must proceed, within one month from the receipt of this resolution, to:

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- Certify that the camera or video camera system has been removed from the current location or reoriented in such a way that the viewing of the images clearly shows that no access space to the claimant's residence is captured.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

VIII

Conclusion

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within

ten working days, adopt the following measures:

- Certify that the camera or video camera system has been removed from the current location or reoriented in such a way that the viewing of the images clearly shows that no access space to the claimant's residence is captured.

THIRD: NOTIFY this resolution to B.B.B.

FOURTH: Warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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